

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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LINETTE CASTILLO; MIKE CASTILLO; MICHAEL
ANGELLO CASTILLO; L.C. # 1, by her parent
and natural guardian LINETTE CASTILLO,
and L.C. # 2, by her parent and natural
guardian LINETTE CASTILLO;

**FIRST AMENDED
COMPLAINT**

12-cv-00752-JBW-JMA

Plaintiffs,

-against-

ECF Case

THE CITY OF NEW YORK; SGT. CHERNYAVSKY,
Tax ID # 905582; P.O. JOHN FAHIM, TAX ID
941726; and P.O. JOHN JANE DOES # 1-10,
the individual defendant(s) sued
individually and in their official
capacities,

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiffs seeks relief for the violation of plaintiffs' rights secured by 42 U.S.C. §§ 1983; and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiffs' claims arise from an incident that arose on or about May 21, 2010 through November 4, 2010. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiffs to, among other things, false arrest, unlawful search and seizure, excessive force, conspiracy, malicious prosecution, failure to supervise,

fabricated evidence, denial of a fair trial, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. §§ 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983, and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

4. Venue is proper here pursuant to 28 U.S.C. § 1391 because some of the acts in question occurred in Richmond County, and the City of New York is subject to personal jurisdiction in the Eastern District of New York.

PARTIES

5. Plaintiff Mike Castillo is a resident of the State of New York, Richmond County.

6. Plaintiff Linette Castillo is a resident of the State of New York, Richmond County.

7. Plaintiff Michael Angello Castillo is a resident of the State of New York, Richmond County.

8. Plaintiff L.C. # 1 (a female of 16 years of age on the date of the incident) is a resident of the State of New York, Richmond County.

9. Plaintiff L.C. # 2 (a female of 5 years of age on the date of the incident) is a resident of the State of New York, Richmond County.

10. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiffs' rights as described herein.

11. At all times alleged herein, defendant Sgt. Chernyavsky was a New York City Police Officer, assigned Tax ID # 905582, employed with the 120th Precinct and/or "NBSI" located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

12. At all times alleged herein, defendant P.O. John Fahim was a New York City Police Officer, assigned Tax ID # 941726, employed with the 120th Precinct and/or "NBSI" located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

13. At all times alleged herein, defendants P.O. John/Jane Does 1-10 were New York City Police Officers employed with the 120th Precinct and/or "NBSI" located in Richmond

County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

14. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

15. On May 21, 2010, at and in the vicinity of 66 Elm Street, Staten Island, New York, and the 120th Precinct, Staten Island, New York, several police officers operating from the 120th Precinct and/or "NBSI", located in Richmond County, New York, including upon information and belief, defendants Sgt. Sgt. Chernyavsky, P.O. Fahim, and P.O. John/Jane Does 1-10, at times acting in concert and at times acting independently, committed the following illegal acts against plaintiffs.

16. On May 21, 2010, at approximately 6:00 a.m. to 6:15 a.m., at and in the vicinity of 66 Elm Street, Staten Island, New York, defendants Sgt. Chernyavsky, P.O. Fahim, and P.O. John/Jane Does 1-10, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs (or any third person) had committed a crime unlawfully entered the apartment.

17. 66 Elm Street, Staten Island, New York is a two family home with two separate residences, apartments one and two respectively.

18. The plaintiffs reside in apartment number one ("the apartment").

19. The defendants, including defendants Sgt. Chernyavsky, P.O. Fahim, and P.O. John/Jane Does 1-10 broke through the door of the apartment.

20. Once the defendants entered the apartment, plaintiffs were not free to disregard the defendants' questions, walk away or leave the scene.

21. Mike Castillo left his bedroom to see what was happening in his home, when the defendants rushed at him.

22. The defendants struck Mike Castillo with a shield and shoved him onto a staircase.

23. The defendants continued to hit and shove Mike Castillo, before wrenching his arms behind his back, and placing extremely tight handcuffs on his wrists.

24. The defendants then lifted Mike Castillo up by the handcuffs and underwear and threw him on a sofa.

25. The defendants pointed firearms at Mike Castillo.

26. Mike Castillo tried to explain that his wife and children were upstairs and there was no need for firearms.

27. Linette Castillo, in her nightgown, left her bedroom and entered the hallway to see what was happening when the defendants came at her with their firearms drawn.

28. The defendants yelled at Linette Castillo get on the floor, and forced her on the floor face down.

29. The defendant continued to storm through the apartment and went into L.C. # 1's bedroom where she was lying in bed.

30. The defendants pulled the covers off of L.C. # 1.

31. L.C. # 1 was wearing only underwear.

32. The defendants forced L.C. # 1 on the floor next to her mother Linette Castillo.

33. L.C. # 2, frightened by the mistreatment of her family, the defendants' conduct and drawn weapons, came out her bedroom in her nightgown to find her mother and older sister on the floor.

34. The defendants confined L.C. # 2 with her mother and sister.

35. The defendants entered Michael Angello Castillo's bedroom.

36. The defendants pinned Michael Angello Castillo on his bed, twisted his arms behind his back and placed excessively tight handcuffs on his wrists.

37. Michael Angello Castillo was dressed in his underwear.

38. Eventually, the defendants escorted Linette Castillo, L.C. # 1, L.C. # 2, and Michael Angello Castillo down to their living room.

39. Eventually, the defendants allowed the plaintiffs to get dressed.

40. The defendants taunted the plaintiffs by saying things like: You know what your husband does?

41. The plaintiffs asked the defendants what was going on, and told them that there had to be a mistake.

42. The defendants told Mike Castillo that if he told them where the drugs were they would only arrest him.

43. The defendants also threatened to have L.C. # 2 placed in the custody of the Administration of Children Services.

44. The defendants placed handcuffs that were excessively tight on Linette Castillo's and L.C. # 1's wrists.

45. The plaintiffs asked the defendants to remove the handcuffs or loosen them, but the defendants refused and ignored their requests.

46. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiffs, since plaintiffs were unarmed, compliant, and did not resist arrest.

47. Plaintiffs were physically injured as a result of the excessive use of force, and suffered marks to their bodies and pain.

48. Those defendants who did not touch the plaintiffs, witnessed these acts, but failed to intervene and protect plaintiffs from this conduct.

49. The plaintiffs told the defendants that there were no drugs in the apartment.

50. The defendants searched the apartment, ransacking it unnecessarily.

51. The defendants found no controlled substance, contraband, or weapons in the apartment or on any of the occupants, including the plaintiffs.

52. Instead of freeing the plaintiffs and leaving the apartment, defendants Sgt. Chernyavsky, P.O. Fahim, and P.O. John/Jane Does 1-10 falsely claimed that they found controlled substances and contraband in the apartment.

53. The defendants took plaintiffs Mike Castillo, Linette Castillo, L.C. # 1, and Michael Angello Castillo outside the apartment and put them in a police van.

54. The defendants drove plaintiffs Mike Castillo, Linette Castillo, L.C. # 1, and Michael Angello Castillo to the 120th Precinct for arrest processing.

55. The defendants also brought L.C. # 2 to the 120th Precinct where she was released to the custody of relatives.

56. The defendants had refused to let L.C. # 2's relatives take custody of her at 66 Elm Street, Staten Island, New York, even though her relatives were there before her parents were taken away in custody.

57. The defendants processed the arrests of Mike Castillo, Linette Castillo, L.C. # 1, and Michael Angello Castillo at the 120th Precinct.

58. The defendants gave desk appearance tickets to Mike Castillo, Linette Castillo, L.C. # 1, and Michael Angello Castillo, and they were released from custody.

59. Plaintiffs Mike Castillo, Linette Castillo, L.C. # 1, and Michael Angello Castillo eventually appeared at arraignment and the cases against L.C. # 1, and Michael Angello Castillo were adjourned in contemplation of dismissal and dismissed.

60. In order to cover up that there was no basis for their arrest and to justify the wasted expense of their operation, defendants Sgt. Chernyavsky, P.O. Fahim, and P.O. John/Jane Does 1-10, pursuant to a conspiracy, falsely and maliciously told the Richmond County District Attorney's Office

that the plaintiffs had committed various crimes, including possession of a controlled substance.

61. Plaintiffs Mike Castillo and Linette Castillo moved to controvert the alleged search warrant used to enter their home by showing that it was clearly and materially defective.

62. In particular, when defendants Sgt. Chernyavsky, P.O. Fahim, and P.O. John/Jane Does 1-10 obtained the false warrant, they intentionally failed to state to the court that 66 Elm Street, Staten Island, New York is a two family building.

63. The unlawful search warrant also contained a signature date that had been crossed out, replacing the month of "March" with "May," which is an improper alteration voiding a warrant.

64. Upon information and belief, defendants Sgt. Chernyavsky, P.O. Fahim, and P.O. John/Jane Does 1-10 used the defective search warrant, knowing that it was improper to do so because of their omissions.

65. Further, defendants Sgt. Chernyavsky, P.O. Fahim, and P.O. John/Jane Does 1-10 failed to properly supervise and verify the reliability of the alleged informant they used to obtain the unlawful search warrant

66. The defendants also failed to have the alleged informant identify or specify the subjects of the warrant.

67. The defendants also failed to name the occupants of the apartment.

68. The defendants omitted these facts to unlawfully obtain the false warrant.

69. On November 4, 2010, the cases against plaintiffs Mike Castillo and Linette Castillo were dismissed by the Richmond County District Attorney's Office, terminating the criminal cases in their favor.

70. In Richmond County, New York, Criminal Court, Assistant District Attorney Haddad stated that: People move to dismiss both dockets because the apartment number was not clearly nor sufficiently particularly defined or described in the search warrant or it's application. Furthermore, the search warrant and application do not name the occupants of the apartment nor did the informant accompany the police at the execution of the warrant nor was an amendment made to the search warrant prior to the execution. For those reasons, People dismiss.

71. The individual defendants acted in concert in committing the above-described illegal acts against the plaintiffs.

72. The plaintiffs did not resist arrest at any time during the above-described incident.

73. The plaintiffs did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

74. The individual defendants did not observe the plaintiffs violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

75. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their rights.

76. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices against the plaintiffs: (1) fabricating evidence against innocent persons; (2) unlawfully stopping and searching persons; (3) unlawfully obtaining and executing search warrants; (4) wrongfully arresting individuals based on pretexts and

profiling; (5) using excessive force on individuals; and (6) arresting persons in order to meet productivity goals, and justify waste and overtime expenditures.

77. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

78. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD constituted a deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

79. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

80. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

81. As a direct and proximate result of the defendants' actions the plaintiffs experienced personal and

physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

82. The plaintiffs are entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to the plaintiffs' rights.

FIRST CLAIM

(FALSE ARREST & UNLAWFUL SEARCH AND SEIZURE)

83. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

84. The individual defendants falsely arrested plaintiffs without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs (or any third person) had committed a crime.

85. Accordingly, the defendants are liable to plaintiffs for false arrest and unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(EXCESSIVE FORCE)

86. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

87. The individual defendants' use of force upon plaintiffs, as described herein, and the individual defendants' failure to intervene, was objectively unreasonable and caused plaintiffs pain and injury.

88. Accordingly, the defendants are liable to plaintiffs for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

THIRD CLAIM

(FAILURE TO SUPERVISE)

89. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

90. The supervisor defendants are liable to plaintiffs because they supervised the subordinate individual defendants concerning above-mentioned unlawful acts against plaintiffs, and approved their unlawful actions.

FOURTH CLAIM

(MALICIOUS PROSECUTION UNDER FEDERAL LAW)

91. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

92. The defendants are liable to plaintiffs for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious

prosecution against plaintiffs by knowingly, intentionally, and maliciously providing false statements to prosecutors and/or the criminal court(s), which alleged plaintiffs had committed various crimes.

93. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

94. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution.

95. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiffs.

96. The criminal prosecutions were dismissed, terminating in plaintiffs' favor.

FIFTH CLAIM

(FABRICATED EVIDENCE)

97. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

98. The defendants are liable to plaintiffs because they intentionally conspired to fabricate evidence against them, depriving them of liberty without due process of law.

99. In addition, the defendants used and presented the fabricated evidence to prosecute plaintiffs.

100. Further, the defendants were on notice that

creating fabricated evidence is a clear violation of law because it well established that police officer who knowingly use false evidence to obtain a conviction act unconstitutionally.

101. Furthermore, the defendants violated the law by making false statements of fact in a certification for determination of probable cause and/or a conviction, because they performed a function of a complaining witness.

SIXTH CLAIM

(DENAIL OF A FAIR TRIAL)

102. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

103. The individual defendants are liable to plaintiffs because they intentionally created false information likely to influence a fact finder's or jury's decision and forwarded that information to prosecutors, a grand jury, a jury, and/or court, thereby violating plaintiffs' constitutional right to a fair trial, and the harm occasioned by such an unconscionable action is redressable in an action for damages under 42 U.S.C. § 1983.

EIGHTH CLAIM

(MONELL CLAIM)

104. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

105. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiffs.

106. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants are unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

107. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

108. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) violated the law by: (1) fabricating evidence against innocent persons; (2) unlawfully stopping and searching persons; (3) unlawfully obtaining and executing search warrants; (4) wrongfully arresting individuals based on pretexts and

profiling; (5) using excessive force on individuals; and (6) arresting persons in order to meet productivity goals, and justify waste and overtime.

WHEREFORE, plaintiffs demand a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: Brooklyn, New York
February 28, 2012

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